

House File 177

H-1210

1 Amend House File 177 as follows:

2 1. By striking everything after the enacting clause and  
3 inserting:

4 <Section 1. Section 708.3A, subsections 1, 2, 3, and 4, Code  
5 2025, are amended to read as follows:

6 1. A person who commits an assault, as defined in section  
7 708.1, against a peace officer, jailer, correctional or  
8 juvenile detention staff, member or employee of the board  
9 of parole, health care provider, employee of the department  
10 of health and human services, employee of the department of  
11 inspections, appeals, and licensing who conducts investigations  
12 or inspections, employee of the department of revenue, national  
13 guard member engaged in national guard duty or state active  
14 duty, civilian employee of a law enforcement agency, civilian  
15 employee of a fire department, or fire fighter, whether paid or  
16 volunteer, with the knowledge that the person against whom the  
17 assault is committed is a peace officer, jailer, correctional  
18 or juvenile detention staff, member or employee of the board  
19 of parole, health care provider, employee of the department  
20 of health and human services, employee of the department of  
21 inspections, appeals, and licensing who conducts investigations  
22 or inspections, employee of the department of revenue, national  
23 guard member engaged in national guard duty or state active  
24 duty, civilian employee of a law enforcement agency, civilian  
25 employee of a fire department, or fire fighter and with the  
26 intent to inflict a serious injury upon the peace officer,  
27 jailer, correctional or juvenile detention staff, member or  
28 employee of the board of parole, health care provider, employee  
29 of the department of health and human services, employee of the  
30 department of inspections, appeals, and licensing who conducts  
31 investigations or inspections, employee of the department of  
32 revenue, national guard member engaged in national guard duty  
33 or state active duty, civilian employee of a law enforcement  
34 agency, civilian employee of a fire department, or fire  
35 fighter, is guilty of a class "~~D~~" "C" felony.

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(amending this HF 177 to CONFORM to SF 397)

1       2. A person who commits an assault, as defined in section  
2 708.1, against a peace officer, jailer, correctional or  
3 juvenile detention staff, member or employee of the board  
4 of parole, health care provider, employee of the department  
5 of health and human services, employee of the department of  
6 inspections, appeals, and licensing who conducts investigations  
7 or inspections, employee of the department of revenue, national  
8 guard member engaged in national guard duty or state active  
9 duty, civilian employee of a law enforcement agency, civilian  
10 employee of a fire department, or fire fighter, whether paid  
11 or volunteer, who knows that the person against whom the  
12 assault is committed is a peace officer, jailer, correctional  
13 or juvenile detention staff, member or employee of the board  
14 of parole, health care provider, employee of the department  
15 of health and human services, employee of the department of  
16 inspections, appeals, and licensing who conducts investigations  
17 or inspections, employee of the department of revenue, national  
18 guard member engaged in national guard duty or state active  
19 duty, civilian employee of a law enforcement agency, civilian  
20 employee of a fire department, or fire fighter and who uses or  
21 displays a dangerous weapon in connection with the assault, is  
22 guilty of a class "D" "C" felony.

23       3. A person who commits an assault, as defined in section  
24 708.1, against a peace officer, jailer, correctional or  
25 juvenile detention staff, member or employee of the board  
26 of parole, health care provider, employee of the department  
27 of health and human services, employee of the department of  
28 inspections, appeals, and licensing who conducts investigations  
29 or inspections, employee of the department of revenue, national  
30 guard member engaged in national guard duty or state active  
31 duty, civilian employee of a law enforcement agency, civilian  
32 employee of a fire department, or fire fighter, whether paid  
33 or volunteer, who knows that the person against whom the  
34 assault is committed is a peace officer, jailer, correctional  
35 or juvenile detention staff, member or employee of the board

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(amending this HF 177 to CONFORM to SF 397)

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1 of parole, health care provider, employee of the department  
2 of health and human services, employee of the department of  
3 inspections, appeals, and licensing who conducts investigations  
4 or inspections, employee of the department of revenue, national  
5 guard member engaged in national guard duty or state active  
6 duty, civilian employee of a law enforcement agency, civilian  
7 employee of a fire department, or fire fighter, and who causes  
8 bodily injury or mental illness, is guilty of ~~an aggravated~~  
9 ~~misdemeanor~~ a class "D" felony.

10 4. Any other assault, as defined in section 708.1, including  
11 an assault causing another to come into contact with saliva  
12 by throwing, tossing, spitting, or expelling the fluid,  
13 committed against a peace officer, jailer, correctional or  
14 juvenile detention staff, member or employee of the board  
15 of parole, health care provider, employee of the department  
16 of health and human services, employee of the department of  
17 inspections, appeals, and licensing who conducts investigations  
18 or inspections, employee of the department of revenue, national  
19 guard member engaged in national guard duty or state active  
20 duty, civilian employee of a law enforcement agency, civilian  
21 employee of a fire department, or fire fighter, whether paid  
22 or volunteer, by a person who knows that the person against  
23 whom the assault is committed is a peace officer, jailer,  
24 correctional or juvenile detention staff, member or employee  
25 of the board of parole, health care provider, employee of  
26 the department of health and human services, employee of the  
27 department of inspections, appeals, and licensing who conducts  
28 investigations or inspections, employee of the department of  
29 revenue, national guard member engaged in national guard duty  
30 or state active duty, civilian employee of a law enforcement  
31 agency, civilian employee of a fire department, or fire  
32 fighter, is ~~a serious~~ an aggravated misdemeanor. A person  
33 convicted of violating this subsection shall serve a minimum  
34 term of seven days of the sentence imposed by law, and shall  
35 not be eligible for suspension of the minimum sentence.

1     Sec. 2. Section 708.3B, Code 2025, is amended to read as  
2 follows:

3     **708.3B Inmate assaults — bodily fluids or secretions.**

4     A person who, while confined in a jail or in an institution  
5 or facility under the control of the department of corrections,  
6 commits any of the following acts commits a class "D" felony:

7     1. An assault, as defined under [section 708.1](#), upon an  
8 employee of the jail or institution or facility under the  
9 control of the department of corrections, ~~which~~ that results  
10 in the employee's contact with blood, seminal fluid, urine,  
11 saliva, or feces.

12     2. An act ~~which~~ that is intended to cause pain or injury  
13 or be insulting or offensive and ~~which~~ that results in blood,  
14 seminal fluid, urine, saliva, or feces being cast or expelled  
15 upon an employee of the jail or institution or facility under  
16 the control of the department of corrections.>

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WILLS of Dickinson